

Master Services Agreement — Acme Corp / Demo LLP

Article I — Definitions

For the purposes of this Agreement, the following terms shall have the meanings set forth below. "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a party. "Confidential Information" means any non-public information disclosed by one party to the other, whether orally or in writing, that is designated as confidential or that should reasonably be understood to be confidential given the nature of the information.

Article II — Services

Demo LLP shall provide professional consulting services as described in one or more Statements of Work executed by the parties. Each Statement of Work shall set forth the scope of services, deliverables, timeline, and fees.

Section 4.2 — Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, NEITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL EXCEED THE FEES PAID BY ACME CORP TO DEMO LLP IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES.

Section 6.1 — Indemnification by Demo LLP

Demo LLP shall indemnify, defend, and hold harmless Acme Corp from and against any third-party claims arising out of (a) Demo LLP's gross negligence or wilful misconduct, or (b) any breach of Demo LLP's confidentiality obligations under Article I.

Section 8.4 — Termination

Either party may terminate this Agreement for material breach upon thirty (30) days' written notice if the breach remains uncured at the end of such period. Acme Corp may also terminate any Statement of Work for convenience upon fifteen (15) days' written notice.

Schedule A — Fee Schedule

Hourly rates: Senior Partner \$650/hour, Partner \$475/hour, Senior Associate \$325/hour, Associate \$210/hour, Paralegal \$125/hour. Fixed fees for routine filings available on request.